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ORDINANCE NO. 211, 2025
OF THE COUNCIL OF THE CITY OF FORT COLLINS
AMENDING CHAPTER 5, ARTICLE II, DIVISION 2 OF THE CODE OF THE CITY OF
FORT COLLINS FOR THE PURPOSE OF REPEALING THE 2021 INTERNATIONAL
BUILDING CODE AND ADOPTING THE 2024 INTERNATIONAL BUILDING CODE,
WITH AMENDMENTS

A. Since 1924, the City has reviewed, amended and adopted the latest nationally recognized building standards available for the times.

B. Upon recommendation of City staff, the City Council has determined that it is in the best interests of the City to align eleven interconnected basic construction codes under one publication year.

C. The eleven interconnected basic construction codes are the *International Building Code*, *International Residential Code*, *International Mechanical Code*, *International Fuel Gas Code*, *International Energy Conservation Code*, *International Property Maintenance Code*, *International Swimming Pool and Spa Code*, *International Existing Building Code*, *International Plumbing Code*, *International Fire Code*, and the *International Wildland-Urban Interface Code* to the extent adopted by the *Colorado Wildfire Resiliency Code*.

D. The City Council has determined that the 2024 publication year of these interconnected basic construction codes should be adopted and that any counterpart *International* codes previously adopted should be repealed, both to align the publication years of the codes and because the 2024 publications contain improvements in construction code regulation.

E. City staff has conducted a significant public outreach program, working with the regulated construction industry and building professionals.

F. The adoption of the interconnected basic construction codes has been presented to community groups and feedback has been received from the Water Commission, Energy Board, Commission on Disability, Natural Resource Advisory Board, Poudre Fire Authority Board, Building Review Commission, Affordable Housing Board, and Air Quality Advisory Board.

G. The City Council has determined that it is in the best interests of the health, safety and welfare of the City and its residents that the *2024 International Building Code* be adopted, with local amendments as set forth in this Ordinance.

H. Pursuant to the City Charter Article II, Section 7, City Council may enact any ordinance which adopts a code by reference in whole or in part provided that before adoption of such ordinance the Council hold a public hearing thereon and that notice of the hearing shall be published twice in a newspaper of general circulation published in the City, with one of such publications occurring at least eight (8) days preceding the

hearing and the other publication occurring at least fifteen (15) days preceding the hearing.

I. In compliance with City Charter, Article II, Section 7, the City Clerk published in the Fort Collins *Coloradoan* such notice of hearing concerning adoption of the 2024 International Codes on November 16, 2025, and November 23, 2025.

J. Attached as Exhibit A and incorporated herein by reference is the Notice of Public Hearing dated November 16, 2025, that was so published and which the Council hereby finds meets the requirements of Article II, Section 7 of the City Charter.

In light of the foregoing recitals, which the Council hereby makes and adopts as determinations and findings, BE IT ORDAINED BY THE COUNCIL OF THE CITY OF FORT COLLINS as follows:

Section 1. The City Council hereby repeals the 2021 *International Building Code* ("IBC") and adopts 2024 IBC as amended by this Ordinance.

Section 2. Section 5-26(a) of the Code of the City of Fort Collins is hereby amended to read as follows:

(a) Pursuant to the power and authority conferred on the City Council by C.R.S. §Colorado Revised Statutes Section 31-16-202 and Article II, Section 7 of the Charter, the City Council has adopted the ~~2021~~2024 *International Building Code* (~~2021~~2024 IBC) published by the International Code Council, second printing (August 2024), as amended by the City, which shall have the same force and effect as though set forth in full herein. The subject matter of the codes adopted herein includes comprehensive provisions and standards regulating the erection, construction, enlargement, alteration, repair, moving, removal, conversion, demolition, occupancy, equipment, use, height, area and maintenance of buildings and structures exclusive of detached one- and two-family dwellings and multiple single-family dwellings (townhouses) not more than three (3) stories above grade and their accessory structures, for the purpose of protecting the public health, safety and general welfare. As provided in the ~~2021~~2024 *International Building Code*, Appendices are not adopted except as expressly set forth in § 5-27.

Section 3. Section 5-27 of the Code of the City of Fort Collins is hereby repealed and reenacted to read as follows:

Sec. 5-27. Amendments and Deletions to the 2024 International Building Code.

The 2024 *International Building Code* adopted in § 5-26(a) is amended as follows:

1. **Section 101. Title** is amended to read as follows:

101.1 Title. These regulations shall be known as the *Building Code of the City of Fort Collins*, hereinafter referred to as “this code.”

2. **Section 101.4 Referenced codes** is amended to read as follows:

[A] 101.4 Referenced codes. The other codes specified in Sections 101.4.1 through 101.4.7 **101.4.11** and referenced elsewhere in this code shall be considered to be part of the requirements of this code to the prescribed extent of each such reference.

3. **Sections 101.4.1 Gas** through **101.4.7 Existing buildings** are deleted in their entirety and replaced with the following:

[A] 101.4.1 Gas. ~~The provisions of the *International Fuel Gas Code* shall apply to the installation of gas piping from the point of delivery, gas appliances and related accessories as covered in this code. These requirements apply to gas piping systems extending from the point of delivery to the inlet connections of appliances and the installation and operation of residential and commercial gas appliances and related accessories.~~

[A] 101.4.2 Mechanical. ~~The provisions of the *International Mechanical Code* shall apply to the installation, alterations, repairs and replacement of mechanical systems, including equipment, appliances, fixtures, fittings and appurtenances, including ventilating, heating, cooling, air conditioning and refrigeration systems, incinerators and other energy-related systems.~~

[A] 101.4.3 Plumbing. ~~The provisions of the *International Plumbing Code* shall apply to the installation, alteration, repair and replacement of plumbing systems, including equipment, appliances, fixtures, fittings and appurtenances, and where connected to a water or sewage system and all aspects of a medical gas system. The provisions of the *International Private Sewage Disposal Code* shall apply to private sewage disposal systems.~~

[A] 101.4.4 Property maintenance. ~~The provisions of the *International Property Maintenance Code* shall apply to existing structures and premises; equipment and facilities; light, ventilation, space heating, sanitation, life and fire safety hazards; responsibilities of owners, operators and occupants; and occupancy of existing premises and structures.~~

[A] 101.4.5 Fire prevention. ~~The provisions of the *International Fire Code* shall apply to matters affecting or relating to structures, processes and premises from the hazard of fire and explosion arising from the storage, handling or use of structures, materials or devices; from conditions hazardous to life, property or public welfare in the occupancy of structures or premises; and from the construction, extension, repair, alteration or removal of fire suppression, automatic sprinkler systems and alarm systems or fire hazards in the structure or on the premises from occupancy or operation.~~

~~[A] 101.4.6 Energy.~~ The provisions of the *International Energy Conservation Code* shall apply to all matters governing the design and construction of *buildings* for energy efficiency.

~~[A] 101.4.7 Existing buildings.~~ The provisions of the *International Existing Building Code* shall apply to matters governing the *repair, alteration, change of occupancy, addition* to and relocation of *existing buildings*.

101.4.1 Gas. All references to the *International Fuel Gas Code* shall mean the fuel gas code currently in effect as enacted by the City.

101.4.2 Mechanical. All references to the *International Mechanical Code* shall mean the mechanical code currently in effect as enacted by the City.

101.4.3 Plumbing. All references to the *International Plumbing Code* shall mean the *International Plumbing Code* to the extent adopted by the *Colorado Plumbing Code* currently in effect as enacted by the City.

101.4.4 Property Maintenance. All references to the *International Property Maintenance Code* shall mean the property maintenance code currently in effect as enacted by the City.

101.4.5 Fire Prevention. All references to the *International Fire Code* shall mean the fire code currently in effect as enacted by the City.

101.4.6 Energy. All references to the *International Energy Conservation Code* shall mean the energy code currently in effect as enacted by the City.

101.4.7 Existing buildings. All references to existing *buildings* shall be regulated pursuant to the adopted *International Property Maintenance Code* or the *International Existing Building Code* currently in effect as enacted by the City.

101.4.8 Residential. All references to the *International Residential Code* shall mean the residential code currently in effect as enacted by the City.

101.4.9 Areas prone to flooding. All references to “flood hazard” and “areas prone to flooding” in this code and appendices adopted therewith subject to applicable regulations and requirements set forth in Chapter 10 of the City Code, entitled “Flood Prevention and Protection.”

101.4.10 Electrical. All references to the *National Electrical Code* shall mean the electrical code currently in effect as enacted by the City.

101.4.11 Pool and Spa. All references to the *Pool and Spa Code* shall mean the *International Swimming Pool and Spa Code* currently in effect as enacted by the City.

101.4.12 Wildfire Resiliency. All references to the *Wildland-Urban Interface Code*, the *Colorado Wildfire Resiliency Code*, or CWRC, shall mean the *Colorado Wildfire Resiliency Code* currently in effect as enacted by the City.

4. **Section 103 CODE COMPLIANCE AGENCY** is deleted in its entirety and replaced with the following:

~~SECTION 103 CODE COMPLIANCE AGENCY~~

~~[A] 103.1 Creation of enforcement agency.~~ The ~~[INSERT NAME OF DEPARTMENT]~~ is hereby created and the official in charge thereof shall be known as the *building official*. The function of the agency shall be the implementation, administration and enforcement of the provisions of this code.

~~[A] 103.2 Appointment.~~ The *building official* shall be appointed by the chief appointing authority of the *jurisdiction*.

~~[A] 103.3 Deputies.~~ In accordance with the prescribed procedures of this *jurisdiction* and with the concurrence of the appointing authority, the *building official* shall have the authority to appoint a deputy building official, other related technical officers, inspectors and other employees. Such employees shall have powers as delegated by the *building official*.

SECTION 103 CODE ADMINISTRATION

103.1 Entity charged with code administration. The Community Development and Neighborhood Services Department (CDNS) is charged with the administration and enforcement of this code.

The *building official*, appointed by the City Manager, is charged with the direct overall administration and enforcement of this code and, in the performance of said duties, may delegate the necessary authority to the appropriate technical, administrative, and compliance staff under the supervision the *building official*.

5. **Section 104.2.4.1 Flood hazard areas** is deleted in its entirety and replaced with the following:

~~[A] 104.2.4.1 Flood hazard areas.~~ The *building official* shall not grant modifications to any provision required in *flood hazard areas* as established by Section 1612.3 unless a determination has been made that:

- ~~1. A showing of good and sufficient cause that the unique characteristics of the size, configuration or topography of the site render the elevation standards of Section 1612 inappropriate.~~

- ~~2. A determination that failure to grant the variance would result in exceptional hardship by rendering the lot undevelopable.~~
- ~~3. A determination that the granting of a variance will not result in increased flood heights, additional threats to public safety or extraordinary public expense; cause fraud on or victimization of the public; or conflict with existing laws or ordinances.~~
- ~~4. A determination that the variance is the minimum necessary to afford relief, considering the flood hazard.~~
- ~~5. Submission to the applicant of written notice specifying the difference between the design flood elevation and the elevation to which the building is to be built, stating that the cost of flood insurance will be commensurate with the increased risk resulting from the reduced floor elevation, and stating that construction below the design flood elevation increases risks to life and property.~~

104.2.4.1 Flood hazard areas. For existing buildings or structures regulated under the scope of this code that are in whole or in part located in flood hazard areas, construction documents shall be submitted as established in accordance with Chapter 10 of the City Code, entitled "Flood Prevention and Protection."

6. **Section 105.2 Work exempt from permit** is amended to read as follows, with the subsections for **Gas** and **Mechanical** being retained in their entirety:

105.2 Work exempt from permit. Exemptions from *permit* requirements of this code shall not be deemed to grant authorization for any work to be done in any manner in violation of the provisions of this code or any other laws or ordinances of this jurisdiction. *Permits* shall not be required for the following:

Building:

1. One-story, detached, accessory structures used as tool and storage sheds, playhouses and similar uses, for lawn and garden equipment storage, tool storage and similar uses, including arbors, pergolas, and similar structures, provided that the floor area is not greater than 120 square feet (11 m²) nor greater than 8 feet (2.438 m) in height measured from grade, the structures do not house flammable liquids in quantities exceeding 10 gallons (38 L) per building, and the structures are located at least 3 feet (0.914 m) from an adjoining property line.
2. Fences, other than swimming pool barriers, not over 7 feet (2134 mm) 6 feet (1829 mm) high.
3. Oil derricks
4. Retaining walls that are not over 4 feet (1219 mm) in height measured from the bottom of the footing low side grade to the top of the wall, unless supporting a surcharge or impounding Class I, II and IIIA liquids provided

the horizontal distance to the next uphill retaining wall is at least equal to the total height of the lower retaining wall.

5. Water tanks supported directly ~~on~~ upon grade if the capacity is not greater than 5,000 gallons (18 927 L) and the ratio of height to diameter or width is not greater than 2:1.
6. Sidewalks and driveways not more than 30 inches (762 mm) above adjacent grade, and not over any *basement* or *story* below and are not part of an *accessible route*.
7. Painting, papering, tiling, carpeting, cabinets, counter tops and similar finish work.
8. Temporary motion picture, television and theater stage sets and scenery.
9. Prefabricated *swimming pools* accessory to a Group R-3 occupancy that are less than 24 inches (610 mm) deep, are not greater than 5,000 gallons (18 925 L) and are installed entirely above ground.
10. Shade cloth or maximum 6 mil single layer poly-roofed structures constructed for nursery or agricultural purposes, not including service systems, and no entry by the general public.
11. Swings and other playground equipment or playhouse/play structures accessory to detached one- and two-family dwellings provided that the equipment or structure does not exceed 120 square feet (11.15 m²) in floor area or 8 feet (2.438 m) in height measured from grade, no more than one elevated playhouse or play structure is designed per lot, and said equipment or structure is used exclusively for play. Elevated play houses or play structures shall not exceed 64 square feet (5.9 m²) in floor area or 6 feet (1.82 m) in height as measured from the floor to the highest point of such structure.
12. Window awnings in Group R-3 and U occupancies, supported by an exterior wall that do not project more than 54 inches (1372 mm) from the exterior wall and do not require additional support, storm windows, storm doors, and rain gutter installation except that, for structures fifty (50) years of age or older, historic review pursuant to Chapter 14 of the City Code must be completed first.
13. Nonfixed and movable fixtures, cases, racks, counters and partitions not over 5 feet 9 inches (1753 mm) in height.

14. Decks or slabs not exceeding 200 square feet (18.58 m²) in area, not more than 30 inches (762 mm) above *grade plane*, not attached to a *building*, and not serving an exit door required by Chapter 10.
15. Roofing repair or replacement work not exceeding one square (100 square feet) of covering per *building*.
16. Replacement of nonstructural siding that is not installed on or over a fire-rated assembly when the removal of siding is performed in accordance with State laws regarding asbestos and lead paint except that, for structures fifty (50) years of age or older, historic review pursuant to Chapter 14 of the City Code must be completed first.
17. Temporary *special event structures*.
18. Shade sails that are freestanding and not more than 120 square feet or taller than 8 feet from grade.

Electrical:

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4. Replacement of lighting controls, ceiling fans, and interior light fixtures provided the new fixture is rated at less or equal power consumption rate compared to the fixture being replaced.

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Plumbing:

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2. The clearing of stoppages or the repairing of leaks in pipes, valves or fixtures, ~~and the removal and reinstallation of water closets~~ repair and replacement of garbage disposal units and dishwashers directly connected to the sanitary sewer system, including the necessary replacement of all tail pipes and traps, or the repair, maintenance, and replacement of sinks, faucets, drains, showers, tubs, and toilets, provided that such repairs do not involve or require the replacement or rearrangement of valves, ~~or pipes or fixtures~~.

7. A new **Section 105.2.1.1 Emergency disaster no-fee permit** is added to read as follows:

105.2.1.1 Emergency disaster no-fee permit. When the *building official* determines there is an emergency or disaster event that has caused substantial damage to structures within the City, the *building official* is authorized to issue

a no-fee *permit* to allow the permit-holder to make temporary repairs to a structure to address damages caused by the emergency or disaster event to make the structure safe and/or allow occupancy. A no-fee *permit* will expire after 180 days, at which time a regular building *permit* will need to be obtained to otherwise bring the structure into compliance with this code. The *building official* is authorized to extend a no-fee permit under this section for good cause.

8. **Section 105.3.2 Time limitation of application** is amended to read as follows:

105.3.2 Time limitation of application An application for a *permit* for any proposed work shall be deemed to have been abandoned 180 days after the date of filing, unless such application has been pursued in good faith or a *permit* has been issued; except that the *building official* is authorized to grant one or more extensions of time for additional periods not exceeding ~~90~~ 180 days each. The extension shall be requested in writing and justifiable cause demonstrated. Applications that have been deemed abandoned for 30 days or more will be considered void, unless the *building official* determines, in their reasonable discretion, that an extension of no more than 180 days should be allowed due to conditions beyond the applicant's control.

9. **Section 105.5 Expiration** is amended to read as follows:

105.5 Expiration. Every *permit* issued shall become invalid unless the work on the *site* authorized by such *permit* is commenced within 180 days after its issuance, or if the work authorized on the *site* by such *permit* is suspended or abandoned for a period of 180 days after the time the work is commenced. The *building official* is authorized to grant, in writing, one or more extensions of time, for periods not more than 180 days each. The extension shall be requested in writing and justifiable cause demonstrated.

Regardless of when the permit was issued relative to the effective date of this code, any work authorized by a *permit* regulated by this code or any other building construction code administered by the *building official*, that involves the construction or alteration of an exterior building component, assembly or finish material, such as the foundation, wall and roof framing, sheathing, siding, fenestration, and roof covering, shall be fully finished for permanent outdoor exposure within 24 months of the date of the issuance of such *permit*.

10. A new **Section 105.8 Transfer of permits** is added to read as follows:

105.8 Transfer of permits. A current valid building *permit* may be transferred from one party to another upon written application to the *building official* with consent of both parties. When any changes are made to the original plans and specifications that substantially differ from the plans submitted with the permit, as determined by the *building official*, a new plan review fee shall be paid as calculated in accordance with

Section 109. A fee of \$50 shall be paid to cover administrative costs for all building *permit* transfers. No change shall be made to the expiration date of the original *permit*.

11. **SECTION 106 FLOOR AND ROOF DESIGN LOADS** is deleted in its entirety.

SECTION 106 FLOOR AND ROOF DESIGN LOADS

~~[A] 106.1 Live loads posted.~~ In commercial or industrial *buildings*, for each floor or portion thereof designed for *live loads* exceeding 50 psf (2.40 kN/m²), such design *live loads* shall be conspicuously posted by the *owner* or the *owner's* authorized agent in that part of each story in which they apply, using durable signs. It shall be unlawful to remove or deface such notices.

~~[A] 106.2 Issuance of certificate of occupancy.~~ A certificate of occupancy required by Section 111 shall not be issued until the floor load signs, required by Section 106.1, have been installed.

~~[A] 106.3 Restrictions on loading.~~ It shall be unlawful to place, or cause or permit to be placed, on any floor or roof of a *building, structure* or portion thereof, a *load* greater than is permitted by this code.

12. **Section 107.3.1 Approval of construction documents** is amended to read as follows:

107.3.1 Approval of construction documents. When the *building official* issues a *permit*, the *construction documents* shall be *approved*, in writing or by stamp *indicating the approved permit number* as "Reviewed for Code Compliance". One set of *construction documents* so reviewed shall be retained by the *building official*. The other set shall be returned to the applicant, shall be kept at the *site* of work and shall be open to inspection by the *building official* or a duly authorized representative.

13. **SECTION 109 FEES** is deleted in its entirety and replaced with the following:

SECTION 109 FEES

~~[A] 109.1 Payment of fees.~~ A *permit* shall not be valid until the fees prescribed by law have been paid, nor shall an amendment to a *permit* be released until the additional fee, if any, has been paid.

~~[A] 109.2 Schedule of permit fees.~~ Where a *permit* is required, a fee for each *permit* shall be paid as required, in accordance with the schedule as established by the applicable governing authority.

~~[A] 109.3 Permit valuations.~~ The applicant for a *permit* shall provide an estimated value of the work for which the *permit* is being issued at time of application. Such

~~estimated valuations shall include the total value of work, including materials and labor, for which the permit is being issued, such as electrical, gas, mechanical, plumbing equipment and permanent systems. Where, in the opinion of the building official, the valuation is underestimated, the permit shall be denied, unless the applicant can show detailed estimates acceptable to the building official. The building official shall have the authority to adjust the final valuation for permit fees.~~

~~[A] 109.4 Work commencing before permit issuance. Any person who commences any work before obtaining the necessary permits shall be subject to a fee established by the building official that shall be in addition to the required permit fees.~~

~~[A] 109.5 Related fees. The payment of the fee for the construction, alteration, removal or demolition for work done in connection to or concurrently with the work authorized by a building permit shall not relieve the applicant or holder of the permit from the payment of other fees that are prescribed by law.~~

~~[A] 109.6 Refunds. The building official is authorized to establish a refund policy.~~

SECTION 109 FEES

109.1 Payment of fees. No permit shall be valid until applicable fees prescribed by Chapter 7.5 of the City Code have been paid, except for emergency permits issued pursuant to Section 105.2.1 of this code.

109.2 Work commencing before permit issuance. In addition to the penalties set forth in Section 114.4 of this code, any person or firm who, before obtaining the necessary permit(s), commences any construction of, or work on, a building, structure, electrical, gas, mechanical or plumbing system that is not otherwise exempt from obtaining a permit, may be subject to a stop work order and a work without a permit fee in addition to the required permit fee as established by the building official.

14. **Section 111.2 Certificate issued** is amended to read as follows:

111.2 Certificate issued. After the building official inspects the building or structure and does not find violations of the provisions of this code or other laws that are enforced by the department CDNS, the building official shall issue a certificate of occupancy that contains may contain the following:

...

15. **SECTION 113 MEANS OF APPEALS** is deleted in its entirety and replaced with the following:

SECTION 113 MEANS OF APPEALS

~~[A] 113.1 General. In order to hear and decide appeals of orders, decisions or determinations made by the *building official* relative to the application and interpretation of this code, there shall be and is hereby created a board of appeals. The board of appeals shall be appointed by the applicable governing authority and shall hold office at its pleasure. The board shall adopt rules of procedure for conducting its business and shall render all decisions and findings in writing to the appellant with a duplicate copy to the *building official*.~~

~~[A] 113.2 Limitations on authority. An application for appeal shall be based on a claim that the true intent of this code or the rules legally adopted thereunder have been incorrectly interpreted, the provisions of this code do not fully apply or an equivalent or better form of construction is proposed. The board shall not have authority to waive requirements of this code.~~

~~[A] 113.3 Qualifications. The board of appeals shall consist of members who are qualified by experience and training on matters pertaining to the provisions of this code and who are not employees of the *jurisdiction*.~~

~~[A] 113.4 Administration. The *building official* shall take action without delay in accordance with the decision of the board.~~

SECTION 113 MEANS OF APPEALS

113.1 General. The Building Review Commission (hereafter "Commission") established in § 2-173 of the City Code is hereby empowered in accordance with the procedures set forth in this Section and as authorized under § 2-173 of the City Code to hear and decide appeals of orders, decisions, or determinations made by the *building official* relative to the application and interpretation of this code; to determine the suitability of alternative materials or alternative methods of construction; and to grant *permit* extensions and reinstatements as prescribed by Section 105.5. The *building official* shall serve as the Secretary of the Commission. The Commission shall adopt rules of procedure in accordance with § 2-172 of the City Code for conducting its business and shall render all decisions and findings in writing.

113.2 Applications/Hearings. When a building *permit* applicant or a holder of a building *permit* desires relief from any decision of the *building official* related to the enforcement of this code, except as is otherwise limited in Section 113.4, such building *permit* applicant, building *permit* holder, or representative thereof may appeal the decision of the *building official* to the Commission, stating that such decision by the *building official* was based on an erroneous interpretation of the building regulations or that an alternative design, alternative materials and/or the alternative methods of construction proposed by the appellant are equivalent to those prescribed by this code, considering structural strength, effectiveness, fire resistance, durability, safety and any other pertinent factors.

The Commission shall hear and decide all appeals made to it and shall have the authority to rule in favor of the appellant when the Commission determines that the interpretation of the building regulations of the City by the *building official* was erroneous, or when the Commission determines an alternative design, alternative materials and/or the alternative methods proposed by the appellant are equivalent to those prescribed by this code, considering structural strength, effectiveness, fire resistance, durability, safety and any other pertinent factors. The Commission shall require that sufficient evidence be submitted to substantiate any claims made regarding the proposed alternative design, alternative materials and/or alternative methods of construction.

113.3 Fees and Notification. Persons desiring to appeal to the Commission any decision of the *building official* as provided in this Section shall file a request on the form promulgated by the *building official* and pay the applicable fee at the time of filing. Written notice of hearings shall be given to the Appellant and, with respect to appeals concerning accessibility under Chapter 11 of this code, to the City staff liaison for the Disability Advisory Board at least four days prior to the hearing by delivering the same to such party's last known email address.

113.4 Limitations. The Building Review Commission shall have no authority with respect to any of the following functions:

1. The administration of this code except as expressly provided herein;
2. Waiving requirements of this code, except as provided in this Section;
3. Modifying the applicable provisions of, or granting variances to, this code, or approving the use of alternative designs, alternative materials and/or alternative methods of construction except as provided for in this Section and based upon a specific appeal from a determination or decision of the *building official* on an individual case basis; and
4. Modifying, interpreting, or ruling on the applicability or intent of the zoning and land use regulations or other laws of the City except as expressly empowered otherwise.

16. **Section 114.4 Violation Penalties** is amended to read as follows:

114.4 Violation penalties. Any *person* who violates a provision of this code or fails to comply with any of the requirements thereof or who erects, constructs, alters or *repairs* a *building* or *structure* in violation of the *approved construction documents* or directive of the *building official*, or of a *permit* or certificate issued under the provisions of this code, ~~shall be subject to penalties as prescribed by law~~ commits a civil infraction and is subject to the provisions contained in § 1-15(f) of the City Code. Each day that a violation continues shall be deemed a separate offense.

17. **SECTION 202 DEFINITIONS** is amended to modify, or add, in alphabetical order, the following definitions:

...

COMMISSIONING. A process to verify and document that the selected *building* and systems have been designed, installed, and function in accordance with the *construction documents*, manufacturers' specifications, and minimum code requirements.

...

DWELLING. ~~A *building* that contains one or two *dwelling units* used, intended or designed to be used, rented, leased, let or hired out to be occupied for living purposes.~~ A *building* used exclusively for residential occupancy and for permitted accessory uses, including single-family dwellings, two-family dwellings and multi-family dwellings. The term *dwelling* shall not include hotels, motels, homeless shelters, seasonal overflow shelters, tents or other *structures* designed or used primarily for temporary occupancy. Any *dwelling* shall be deemed to be a principal *building*.

DWELLING UNIT. ~~A single unit providing complete, independent living *facilities* for one or more *persons*, including permanent provisions for living, sleeping, eating, cooking and sanitation.~~ One or more rooms and a single kitchen and at least one bathroom, designed, occupied or intended for occupancy as separate quarters for the exclusive use of a single family for living, cooking and sanitary purposes, located in a single-family, two-family or multi-family *dwelling* or mixed-use *building*.

...

HEIGHT, BUILDING. ~~The vertical distance from *grade plane* to the average height of the highest roof surface.~~ The vertical distance in feet measured from the average of the finished ground level at the center of all walls of a building or structure to the highest point of the roof surface or structure.

...

ROOM, SLEEPING (BEDROOM). A habitable room within a *dwelling* or other housing unit designed primarily for the purpose of sleeping. The presence of a bed, cot, mattress, convertible sofa or other similar furnishing used for sleeping purposes shall be prima facie evidence that such space or room is a sleeping room. The presence of closets or similar storage *facilities* shall not be considered relevant factors in determining whether or not a room is a sleeping room.

...

TOWNHOUSE. ~~A *building* that contains three or more attached *townhouse units*.~~ A single-family *dwelling unit* constructed as part of a group of two or more attached individual *dwelling units* each of which is separated from the other from the foundation to the roof and is located entirely on a separately recorded and platted parcel of land

(site) bounded by property lines, which parcel is deeded exclusively for such single-family *dwelling*.

...

VOLATILE ORGANIC COMPOUND (VOC): Any compound of carbon, excluding carbon monoxide, carbon dioxide, carbonic acid, metallic carbides or carbonates, and ammonium carbonate, which participates in atmospheric photochemical reactions. VOCs include a variety of chemicals, some of which may have short-and long-term adverse health effects emitted as gases from certain solids or liquids.

...

18. **Section 310.4.1 Care facilities within a dwelling** is amended to read as follows:

310.4.1 Care facilities within a dwelling. Except as provided in C.R.S. § 26-6-104.5 (concerning family child care homes), ~~c~~Care facilities for five or fewer persons receiving care that are within a single-family *dwelling* are permitted to comply with the *International Residential Code* ~~provided an automatic sprinkler system is installed in accordance with Section 903.3.1.3 of this code or Section P2904 of the *International Residential Code*.~~

19. **Section 310.4.2 Lodging houses** is amended to read as follows:

310.4.2 Lodging houses. Owner-occupied *lodging houses* with five or fewer guestrooms shall be constructed in accordance with this code or the *International Residential Code*, ~~provided that facilities constructed using the *International Residential Code* are protected by an automatic sprinkler system installed in accordance with Section P2904 of the *International Residential Code*.~~

20. A new **Section 502.2 Premises identification during construction** is added to read as follows:

502.2 Premises identification during construction. The approved *permit* number and street address shall be displayed and be plainly visible and legible from the public street or road fronting the property on which any *building* is being constructed or remodeled.

21. A new **Section 503.1.2.1 Common ownership** is added to read as follows:

503.1.2.1 Common ownership. The fire separation distance and exterior wall/opening protection requirements of Sections 705.5 and 705.8 do not apply for a *structure* built and located on or across a property line, provided that the property on both sides of the property line is held in common ownership and will remain so for the duration that said *building* is located across that property line. All other code requirements and fire separation distances to other property

lines and assumed property lines set forth in Section 705.3 shall apply. Common ownership documentation must be recorded at the Larimer County Clerk's Office and submitted to the *building official* for review and approval.

22. **CHAPTER 9 FIRE PROTECTION AND LIFE SAFETY SYSTEMS** is deleted in its entirety and replaced with the following:

~~CHAPTER 9 FIRE PROTECTION AND LIFE SAFETY SYSTEMS~~

~~SECTION 901 GENERAL~~

~~901.1 Scope.~~ ~~The provisions of this chapter shall specify where fire protection and life safety systems are required and shall apply to the design, installation and operation of fire protection and life safety systems.~~

~~...~~

~~SECTION 918 EMERGENCY RESPONDER COMMUNICATION COVERAGE~~

~~[F] 918.1 General.~~ ~~In building two-way emergency responder communication coverage shall be provided in all new buildings in accordance with Section 510 of the International Fire Code.~~

CHAPTER 9 FIRE PROTECTION AND LIFE SAFETY SYSTEMS

SECTION 901 ADMINISTRATION

901.1 General. Any buildings or portion thereof regulated by this code shall be provided with fire protection and life systems as required by Chapter 9 of the *International Fire Code*.

23. **Section 1006.3.4 Single exits** is amended to read as follows:

1006.3.4 Single exits. A single *exit* or access to a single *exit* shall be permitted from any *story or occupiable roof* where one of the following conditions exists:

1. ~~The occupant load, number of dwelling units and exit access travel distance do not exceed the values in~~ All requirements of Table 1006.3.4(1) or 1006.3.4(2) **are met.**

~~...~~

24. **TABLE 1006.3.4(1) STORIES AND OCCUPIABLE ROOFS WITH ONE EXIT OR ACCESS TO ONE EXIT FOR R-2 OCCUPANCIES** is amended to read as follows:

TABLE 1006.3.4(1)—STORIES AND OCCUPIABLE ROOFS WITH ONE EXIT OR ACCESS TO ONE EXIT FOR R-2 OCCUPANCIES

STORY OR OCCUPIABLE ROOF	OCCUPANCY	MAXIMUM OCCUPANT LOAD PER STORY AND OCCUPIABLE ROOF NUMBER OF DWELLING UNITS	MAXIMUM EXIT ACCESS TRAVEL DISTANCE (feet)	MAXIMUM FLOOR AREA PER STORY	MINIMUM STAIRWAY WIDTH	CONSTRUCTION TYPE
Basement, first, second, or third story above grade plane and occupiable roofs over the first or second story above grade plane ^{a, b, c}	R-2 ^{a, b, c}	4 dwelling units	125 feet	Per chapter 5	Per chapter 10	Per chapter 5
Fourth and or fifth story above grade plane	R-2 ^{a, b, c, f, g}	4 dwelling units	125 feet ^d	4000 square feet ^e	48 inches ^{b, c}	Type I, Type II or Type IV
Fourth-Sixth story above grade plane and higher	NP	NA	NA			

For SI: 1 foot = 304.8 mm.

NP = Not Permitted.

NA = Not Applicable.

a. Buildings classified as Group R-2 equipped throughout with an automatic sprinkler system in accordance with Section 903.3.1.1 or 903.3.1.2 and provided with emergency escape and rescue openings in accordance with Section 1031.

b. This table is used for Group R-2 occupancies consisting of dwelling units. For Group R-2 occupancies consisting of sleeping units, use Table 1006.3.4(2).

c. This table is for occupiable roofs accessed through and serving individual dwelling units in Group R-2 occupancies. For Group R-2 occupancies with occupiable roofs that are not accessed through and serving individual units, use Table 1006.3.4(2).

d. 20 ft maximum distance of travel to the exit stairway from the exit or entry of any dwelling.

e. May have a floor with a square footage up to 6,000 sq ft, provided the exit stairway width is equal to or greater than a number of inches that is in the same ratio to 48 as the square footage of the floor is to 4000. Maximum required width is 54".

f. Electrical receptacles may not be installed in an exit stairway enclosure and publicly accessible electrical receptacles may not be installed in corridors between dwelling units and the exit stairway.

g. Openings to the exit stairway enclosure shall only be allowed to serve as exit access from normally occupied spaces, exit access from the exit stair way enclosure to another protected exit component, or access to the exterior from the exit stairway enclosure.

...

25. **Section 1010.1.4 Floor elevation** is amended to read as follows:

1010.1.4 Floor elevation. There shall be a floor or landing on each side of a door. Such floor or landing shall be at the same elevation on each side of the door. Landings shall be level except for exterior landings, which are permitted to have a slope not to exceed 0.25 unit vertical in 12 units horizontal (2 percent slope). All exterior steps, slabs, walks, decks and patios serving as exterior door landings or exterior stairs shall be adequately and permanently secured in place by approved methods to prevent such landings or stairs from being undermined or subject to significant displacement due to improper placement of supporting backfill or due to inadequate anchoring methods.

Exceptions:

...

7. Exterior doors serving individual *dwelling units*, other than the main entrance door to a *dwelling unit*, may open at one intervening exterior step that is equally spaced between the interior floor level above and exterior landing below, provided that the step has a minimum tread depth of 12 inches, a maximum riser height of 7 ¾ inches (19.68cm), and a minimum width equal to the door width, and further provided that the door does not swing over the step.

26. **Section 1011.11 Handrails** is amended to read as follows:

1011.11 Handrails. *Flights of stairways of more than 1 riser* shall have *handrails* on each side and shall comply with Section 1014. Where glass is used to provide the *handrail*, the *handrail* shall also comply with Section 2407.

...

27. **Section 1031.5.3 Drainage** is amended to read as follows:

1031.5.3 Drainage. Area wells shall be designed for proper drainage by connecting to the *building's* foundation drainage system required by Section 1805.

Exceptions:

1. A drainage system for area wells is not required where the foundation is on well-drained soil or sand-gravel mixture soils in accordance with the United Soil Classification System, Group I Soils, in accordance with Section 1803.5.1.
2. A drainage system is not required for new window wells on additions to existing dwellings where no foundation drainage system exists.

28. **Section 1102.1 Design** is amended to read as follows:

1102.1 Design. *Buildings and facilities* shall be designed and constructed to be *accessible* in accordance with this code and the most recently published edition of ICC A117.1.

29. **Section 1107.2 Electrical vehicle charging stations** is amended to read as follows, with exception #1 being deleted in its entirety:

1107.2 Electrical vehicle charging stations. *Electrical vehicle charging stations* shall comply with Sections 1107.2.1 and 1107.2.2.

Exceptions:

1. ~~*Electrical vehicle charging stations* provided to serve Group R-3 and R-4 occupancies are not required to comply with this section.~~
 2. Electric vehicle charging stations used exclusively by buses, trucks, other delivery vehicles, law enforcement vehicles and motor pools are not required to comply with this section.
30. **Section 1107.2.2 Vehicle space size** is amended to read as follows:

1107.2.2 Vehicle space size. At least one accessible vehicle space shall be equipped with an electric vehicle charging system and comply with the requirements for a van accessible parking space that is 132 inches (3350 mm) minimum in width with an adjoining access aisle that is 60 inches (1525 mm) minimum in width.

31. **Section 1108.2 Design** is amended to read as follows:

1108.2 Design. *Dwelling units and sleeping units* that are required to be *Accessible units, Type A units* and *Type B units* shall comply with the applicable portions of Chapter 11 of ICC A117.1. Units required to be *Type A units* are permitted to be designed and constructed as *Accessible units*. Units required to be *Type B units* are permitted to be designed and constructed as *Accessible units* or as *Type A units*.

When any building or buildings classified as Group R, Division 1 or Group R, Division 2 Occupancy are constructed as a single building project (or any phase thereof) on any one site, and such building project (or phase) contains one or more accessible *dwelling units* as required by this chapter or Colorado law, said building project (or phase) shall be constructed such that all required *accessible dwelling units* in such building project (or phase) provide the same functional features as are provided in the *non-accessible dwelling units* in such building project (or phase). Furthermore, all such functional features except dwelling unit bedroom-types shall be provided in the same proportion as in the non-accessible units. At least 50 percent of the required *accessible dwelling units* shall be constructed with the distribution of *accessible dwelling unit* bedroom-types being proportionally the same as the distribution of *non-accessible dwelling unit* bedroom-types, provided that at least one of each *dwelling*

unit bedroom-type constructed in the building project (or phase) is an *accessible dwelling unit*.

For purposes of this Section the following definitions shall apply: *Dwelling unit* bedroom-type shall mean the number of bedrooms within the *dwelling unit*. Functional feature shall mean a closet, garage, carport, patio, deck, additional room (such as a bedroom, bathroom, den, storeroom, laundry or similar room) or any other significant feature built at the time of original construction that offers occupants improved convenience or comfort. Aesthetic or decorative features such as colors, architectural design elements, trim and finish materials, decorative heating appliances not providing the primary comfort heat source, lighting fixture style, cabinet and hardware style, plumbing fixture style, the type and location of windows and glazed lights, or any similar miscellaneous features shall not be construed as functional features.

32. **TABLE 1108.6.1.1 ACCESSIBLE DWELLING UNITS AND SLEEPING UNITS** is amended to read as follows:

TABLE 1108.6.1.1—ACCESSIBLE DWELLING UNITS AND SLEEPING UNITS			
TOTAL NUMBER OF UNITS PROVIDED	MINIMUM REQUIRED NUMBER OF ACCESSIBLE UNITS WITHOUT ROLL-IN SHOWERS	MINIMUM REQUIRED NUMBER OF ACCESSIBLE UNITS WITH ROLL-IN SHOWERS^a	TOTAL NUMBER OF REQUIRED ACCESSIBLE UNITS
1 to 25	1	0	1
26 to 50	2	1	2
51 to 75	3	2	4
76 to 100	4	2	5
101 to 150	5	2	7
151 to 200	6	2	8
201 to 300	7	3	10
301 to 400	8	4	12
401 to 500	9	4	13
501 to 1000	2% of total	1% of total	3% of total
Over 1000	20, plus 1 for each 100, or fraction thereof, over 1,000	10, plus 1 for each 100, or fraction thereof, over 1,000	30, plus 2 for each 100, or fraction thereof, over 1,000
^a Required roll-in showers shall have a minimum interior floor area of 36 inches by 60 inches.			

33. A new **Section 1108.6.2.3.1.1 R-2 accessible roll-in showers** is added to read as follows:

1108.6.2.3.1.1 R-2 accessible roll-in showers. All roll-in showers provided in *accessible units*, *Type A units*, or *Type B units* in Group R-2

occupancies, shall have a minimum interior floor area of 36 inches (91 cm) by 60 inches (152 cm).

34. A new **Section 1403.8.1 Vinyl siding on buildings** is added to read as follows:

1403.8.1 Vinyl siding on new buildings. Vinyl siding on *buildings* shall be installed over one-hour fire-rated assemblies listed for exterior fire exposure, in both the vertical and horizontal plane or in accordance with the adopted *Colorado Wildfire Resiliency Code* (CWRC), whichever is more restrictive.

Exception: Repairs less than 100 square feet in total area unless subject to the CWRC.

35. A new **Section 1403.11.3 Polypropylene siding on buildings** is added to read as follows:

1403.11.3 Polypropylene siding on buildings. Polypropylene siding on *buildings* shall be installed over one-hour fire-rated assemblies listed for exterior fire exposure, in both the vertical and horizontal plane or in accordance with the CWRC, whichever is more restrictive.

Exception: Repairs less than 100 square feet in total area unless subject to the CWRC.

36. **Section 1403.14 Insulated vinyl siding** is amended to read as follows:

1403.14 Insulated vinyl siding. Insulated *vinyl siding* shall be certified and *labeled* as conforming to the requirements of ASTM D7793 by an *approved agency* and shall be installed over one-hour fire-rated assemblies listed for exterior fire exposure, in both the vertical and horizontal plane or in accordance with the CWRC, whichever is more restrictive.

Exception: Repairs less than 100 square feet in total area unless subject to the CWRC.

37. **Section 1404.3 Vapor retarders** is amended to read as follows:

1404.3 Vapor retarders. Vapor retarder materials shall be classified in accordance with Table 1404.3(1). **If provided on the interior side of frame walls, a** vapor retarder shall be provided ~~on the interior side of frame walls~~ in accordance with Table 1404.3(2) and Table 1404.3(3) or 1404.3(4) as applicable, or an *approved* design using accepted engineering practice for hygrothermal analysis. Vapor retarders shall be installed in accordance with Section 1404.3.2. The appropriate *climate zone* shall be selected in accordance with Chapter 3 of the *International Energy Conservation Code*.

...

38. A new **Section 1504.7.1 Impact resistance of asphalt shingles** is added to read as follows:

1504.7.1 Impact resistance of asphalt shingles. Asphalt shingles shall be Class 4 impact resistant, comply with UL 2218, and be installed in accordance with the manufacturer's installation instructions.

Exceptions:

1. When existing asphalt shingles are less than Class 4 impact resistant, and the owner wishes to replace the existing asphalt shingles with tiles of a similar color or style, but no Class 4 impact resistance shingles that are similar color or style to the existing asphalt shingles are available, the *building official* may approve alternate materials that are less than Class 4 impact resistant; however, the *building official* will impose the highest class of impact resistance for which shingles of a matching color or style to the existing asphalt shingles are available. If no impact resistant materials are available, the *building official* may approve non-impact resistant materials if the alternate materials meet all other applicable requirements of this code.
2. When the owner is repairing or adding to existing asphalt shingles that are less than Class 4 impact resistant, the owner may use the same or similar materials as the current existing asphalt shingles, even if that same or similar material is not impact resistant, provided the repair does not exceed 49% of the roof area or an addition that does not exceed 50% of the original building size.

39. **Section 1505.1 General** is deleted in its entirety and replaced with the following:

~~**[BF] 1505.1 General.** Fire classification of roof assemblies shall be in accordance with Section 1505. The minimum fire classification of roof assemblies installed on buildings shall comply with Table 1505.1 based on type of construction of the building. Class A, B and C roof assemblies and roof coverings required to be listed by this section shall be tested in accordance with ASTM E108 or UL 790. In addition, fire-retardant-treated wood roof coverings shall be tested in accordance with ASTM D2898.~~

~~**Exception:** Skylights and sloped glazing that comply with Chapter 24 or Section 2610.~~

1505.1 New Construction. Roofs shall be covered with materials listed as Class A. Class A roofing shall be tested in accordance with UL 790 or ASTM E108.

Exceptions:

1. Noncombustible *roof coverings* as defined in Section 1507.3, 1507.4, 1507.5 may be applied in accordance with the manufacturer's specifications in place of a fire-retardant roofing assembly.
2. Skylights and sloped glazing that comply with Chapter 24 or Section 2610 of this code.

40. **TABLE 1505.1 MINIMUM ROOF ASSEMBLY CLASSIFICATION FOR TYPES OF CONSTRUCTION** is deleted in its entirety.

{BF} TABLE 1505.1 MINIMUM ROOF ASSEMBLY CLASSIFICATION FOR TYPES OF CONSTRUCTION^{a, b}								
IA	IB	IIA	IIB	IIIA	IIIB	IV	VA	VB
B	B	B	C^c	B	C^c	B	B	C^c
For SI: 1 foot = 304.8 mm, 1 square foot = 0.0929 m². a. Unless otherwise required in accordance with the <i>International Wildland-Urban Interface Code</i> or due to the location of the building within a fire district in accordance with Appendix D: b. Nonclassified roof coverings shall be permitted on buildings of Group U occupancies, where there is a minimum fire separation distance of 6 feet measured from the leading edge of the roof. c. Buildings that are not more than two stories above grade plane and having not more than 6,000 square feet of projected roof area and where there is a minimum 10-foot fire separation distance from the leading edge of the roof to a lot line on all sides of the building, except for street fronts or public ways, shall be permitted to have roofs of No. 1 cedar or redwood shakes and No. 1 shingles constructed in accordance with Section 1505.7.								

41. **Section 1507.2.1 Deck requirements** is amended to read as follows:

1507.2.1 Deck requirements. Asphalt shingles shall be fastened to solidly sheathed decks. Gaps in solidly sheathed or plank decking shall not exceed 1/8 inch.

42. **Section 1512.1 General** is amended to read as follows with the exceptions being retained in their entirety:

1512.1 General. Materials and methods of application used for recovering or replacing an existing *roof covering* shall comply with the requirements of Chapter 15. Any existing *roof covering* system may be replaced with a *roof covering* of the same materials and classification, provided that the replacement *roof covering* has a minimum rating of Class C.

...

43. **Section 1608.2 Ground snow loads** is deleted in its entirety and replaced with the following:

1608.2 Ground snow loads. The ground snow loads to be used in determining the design snow loads for roofs shall be determined in accordance with the reliability-targeted (strength based) ground snow load values in Chapter 7 of ASCE 7 or Figures 1608.2(1) through 1608.2(4) for the contiguous United States and Table 1608.2 for Alaska. Site-specific case studies shall be determined in accordance with Chapter 7

of ASCE 7 and shall be ~~approved by the building official~~. Snow loads are zero for Hawaii, except in mountainous regions as ~~approved by the building official~~.

1608.2 Ground snow loads. The design snow load P_g , in pounds per square foot (psf), shall be:

50 psf (Ultimate) for Risk Category I and II,

51 psf (Ultimate) for Risk Category III,

62 psf (Ultimate) for Risk Category IV,

or the design ground snow load values shall comply with ASCE 7-22, ASCE Design Geodatabase, published 2025. In no case shall the Ground Snow Load be less than 50 psf (Ultimate). The ASCE Design Geodatabase is available at <https://asce7hazardtool.online>.

The design roof snow load values shall be determined from Chapter 7, ASCE 7-22, including all applicable factors, and loading and drifting considerations. In no case shall the final design roof snow load be less than a uniformly distributed load of 43 psf (Ultimate).

44. **Section 1609.3 Basic wind speed** is deleted in its entirety and replaced with the following:

~~1609.3 Basic wind speed.~~ The ~~basic wind speed~~, V , in mph, for the ~~determination of the wind loads~~ shall be ~~determined by Figures 1609.3(1) through 1609.3(4)~~.

~~The basic wind speed, V , for use in the design of Risk Category I buildings and structures shall be obtained from Figure 1609.3(1).~~

~~The basic wind speed, V , for use in the design of Risk Category II buildings and structures shall be obtained from Figure 1609.3(2).~~

~~The basic wind speed, V , for use in the design of Risk Category III buildings and structures shall be obtained from Figure 1609.3(3).~~

~~The basic wind speed, V , for use in the design of Risk Category IV buildings and structures shall be obtained from Figure 1609.3(4).~~

~~Basic wind speeds for Hawaii, the US Virgin Islands and Puerto Rico shall be determined by using the ASCE Wind Design Geodatabase. The ASCE Wind Design Geodatabase is available at <https://asce7hazardtool.online>, or an approved equivalent.~~

~~The basic wind speed, V , for the special wind regions indicated near mountainous terrain and near gorges shall be in accordance with local *jurisdiction* requirements. The basic wind speeds, V , determined by the local *jurisdiction* shall be in accordance with Chapter 26 of ASCE 7.~~

~~In nonhurricane-prone regions, when the basic wind speed, V , is estimated from regional climatic data, the basic wind speed, V , shall be determined in accordance with Chapter 26 of ASCE 7.~~

1609.3 Basic design wind speed. The basic design wind speed V, in mph, for the determination of the wind loads shall be:
130 miles per hour (Ultimate) for Risk Category I,
140 miles per hour (Ultimate) for Risk Category II,
150 miles per hour (Ultimate) for Risk Category III,
155 miles per hour (Ultimate) for Risk Category IV,
or shall comply ASCE 7-22, ASCE Design Geodatabase published 2025. The ASCE Design Geodatabase is available at <https://asce7hazardtool.online>.

45. **Section 1612.2 Design and construction** is amended to read as follows:

1612.2 Design and construction. The design and construction of *buildings* and *structures* located in *flood hazard areas*, including *coastal high hazard areas* and *coastal A zones*, shall be in accordance with Chapter 5 of ASCE 7 and ASCE 24 and with the provisions of Chapter 10 of the City Code, Flood Prevention and Protection. Elevators, escalators, conveying systems and their components shall conform to ASCE 24 and ASME A17.1/CSA B44 as applicable. In riverine flood hazard areas where design flood elevations are specified but floodways have not been designated, the applicant shall, prior to being issued a building permit, demonstrate that the cumulative effect of the proposed buildings and structures on design flood elevations, including fill, when combined with all other existing and anticipated development, will not increase the design flood elevation more than one foot or a more restrictive value as adopted by the community at any point within the City.

Exception: *Temporary structures* complying with Section 3103.6.1.3.

46. **Section 1809.5 Frost protection** is amended to read as follows:

1809.5 Frost protection. Except where otherwise protected from frost, foundations and other permanent supports of *buildings* and *structures* shall be protected from frost by one or more of the following methods:

1. Extending ~~below the frost line of the locality~~ 30 inches below grade.
2. Constructing in accordance with ASCE 32.
3. Erecting on solid rock.

...

47. A new **Section 1811 Radon-Resistant Construction** is added to read as follows:

Section 1811: Radon-Resistant Construction. New R-2, R-3, and R-4 Occupancies and new I-1 and I-2 nursing homes shall provide radon reduction systems complying with Appendix BE of the *International Residential Code*.

48. A new **Section 2902.1.4 Touch-free toilet facilities** is added to read as follows:

2902.1.4 Touch-free toilet facilities. Toilet facilities installed for occupancies associated with food preparation or food service to the public shall be provided with:

1. Automatic touch-free water control valves on lavatories,
2. Automatic touch-free paper towel dispensers, and
3. Toilet facilities exit doors that allow exiting without requiring touching by hand of any door hardware such as knobs, levers, sliding bolts, latches and similar devices.

Exception: Toilet facilities designed for single occupant use may be provided with exit door locking hardware to afford privacy, doors may swing inward or outward.

49. **Section 2902.2 Separate facilities** is deleted in its entirety and replaced with the following:

~~**[P] 2902.2 Separate facilities.** Where plumbing fixtures are required, separate facilities shall be provided for each sex.~~

Exceptions:

- ~~1. Separate toilet facilities shall not be required for dwelling units and sleeping units.~~
- ~~2. Separate toilet facilities shall not be required in structures or tenant spaces with a total occupant load, including both employees and customers, of 15 or fewer.~~
- ~~3. Separate toilet facilities shall not be required in mercantile occupancies in which the maximum occupant load is 100 or fewer.~~
- ~~4. Separate toilet facilities shall not be required in business occupancies in which the maximum occupant load is 25 or fewer.~~
- ~~5. Separate toilet facilities shall not be required to be designated by sex where single-user toilet rooms are provided in accordance with Section 2902.1.2.~~
- ~~6. Separate toilet facilities shall not be required where rooms having both water closets and lavatory fixtures are designed for use by all persons regardless of sex and privacy is provided for water closets in accordance with Section 405.3.4 of the International Plumbing Code and for urinals in accordance with Section 405.3.5 of the International Plumbing Code.~~

2902.2 Required restroom facilities. Where plumbing fixtures are required, they shall be achieved either by gender-neutral single-user restrooms or by multi-user (multi-fixture) restrooms. Gender-specific multi-user restrooms are only allowed if they are provided for each sex. Gender-neutral multi-user restrooms are allowed only where water closets and showers are each provided in compartments with walls or partitions 4 inches maximum from finished floor and 6 inches minimum below ceiling or 84 inches high and a door enclosing the fixtures to ensure privacy. Urinals must be

located in an area visually separated from the remainder of the facility or each urinal must be located in a stall with a door. The number of fixtures shall be calculated based on the average of the number of male/female fixtures in Table 2902.1.

Exceptions:

1. For mercantile occupancies in which the maximum occupant load is 100 or fewer, one gender-neutral single-user restroom is allowed.
2. For buildings or tenant spaces in which the maximum occupant load is 25 or fewer, one gender-neutral single-user restroom is allowed.

50. **Section 3310.1 Stairways required** is amended to read as follows:

3310.1 Stairways required. Where *building* construction exceeds ~~40 feet (12 192 mm)~~ **20 feet (6096 mm)** in height above the lowest level of fire department vehicle access, a temporary or permanent *stairway* shall be provided. As construction progresses, such *stairway* shall be extended to within one floor of the highest point of construction having secured decking or flooring.

51. A new **CHAPTER 36 SUSTAINABLE BUILDING CONSTRUCTION PRACTICES** is added to read as follows:

CHAPTER 36 SUSTAINABLE BUILDING CONSTRUCTION PRACTICES

Section 3601 General

3601.1 Scope. The provisions of this chapter shall govern sustainable building construction practices for new construction and additions and remodels.

Section 3602 Resource Efficiency

3602.1 Construction waste management. For remodels over 1,500 square feet, additions over 1,500 square feet, and all new *buildings*, a signed construction waste declaration of responsibility is required at the time of application for a building *permit*; the construction waste recycling regulations shall be implemented; all concrete, asphalt, masonry, wood, metals and cardboard shall be recycled; and all mixed construction and demolition materials (as defined in § 12-16 of the City Code) shall be delivered to any facility identified in and disposed of in accordance with § 12-22(c) of the City Code. Compliance shall be certified by inspection and documentation and submission of a signed final construction waste management report.

Exemption: Basement finish projects.

3602.1.1 Building demolitions. *Buildings* or portions of *buildings* that are removed shall be processed in such a way as to safely remove all asbestos and lead paint contaminants. For all demolitions, excluding non-structural demolitions under 1000 square feet, a signed demolition waste declaration of responsibility is

required at the time of application for a demolition permit. All metals, asphalt, concrete and masonry that are free of asbestos and lead paint shall be recycled, and where possible, all remaining materials, such as doors, windows, cabinets, fixtures, and wood, shall be recycled. All mixed construction and demolition materials (as defined in § 12-16 of the City Code) shall be delivered to any facility identified in and disposed of in accordance with § 12-22(c) of the City Code. Compliance shall be certified by inspection, documentation, and submission of a signed final demolition waste management report.

3602.1.2 Recycle chutes. New *buildings* provided with trash chutes or existing *buildings* renovated that add a new trash chute shall provide an additional equivalent chute adjacent to the trash chute for the purpose of recycling. Separate bins shall be provided in the termination room to prevent recycled items from entering the trash bin. Chutes must be appropriately labeled “Landfill” or “Recycle.”

Section 3603 Indoor Environmental Quality (IEQ)

3603.1 Indoor Air Quality (IAQ)

3603.1.1 Heating, Ventilating, and Air Conditioning Design. Prior to and during construction, reasonable efforts shall be made to minimize the release of particulates and accumulation of debris, and the specific requirements of this Section shall apply.

3603.1.2 Air handling system access. The arrangement and location of air handling system components including, but not limited to, air handler units, fans, coils and condensate pans, shall allow access for cleaning and *repair* of the air handling surfaces of such components. Piping, conduits, and other building components shall not be located so as to obstruct the required access.

3603.1.3 Durability of air handling surfaces. Surfaces exposed to airflow within air handling systems shall be constructed of materials that are resistant to deterioration and will not break away, crack, peel, flake off, or show evidence of delamination or continued erosion when tested in accordance with the erosion test in UL 181.

3603.1.4 Airstream surfaces. Materials exposed to airflow within ducts, within air plenums, or on top of suspended ceilings, shall not break away, crack, peel, flake off, or show evidence of delamination or continued erosion when tested in accordance with the erosion test in UL 181.

3603.1.5 New building and first time completed tenant finish spaces pollutant flush-out. After all interior finishes are installed, the *building* or space shall be flushed out by ventilating at a minimum rate of 0.30 cfm per ft² of outside air or the design outdoor airflow rate determined from the *International Mechanical Code*,

whichever is greater, for at least 14 days while maintaining an internal temperature of at least 60°F, and relative humidity not higher than 60 percent. Occupancy shall be permitted to start 1 day after start of the flush-out, provided that flush-out continues for the full 14 days. The *building* or space shall not be "baked out" by increasing the temperature of the space above the occupied set point.

Exception: All residential buildings.

3603.2 Acoustical control. Minimum requirements for exterior-to-interior sound transmission, interior sound transmission, and background sound levels in new construction and additions, except as noted hereunder, shall be provided as specified in Sections 3603.1.1 and 3601.1.2.

3603.2.1 Exterior sound transmission. Where a Group A1, A3, E and I occupancy *building*, a Group B occupancy *building* used for educational purposes, or a Group R occupancy *building* is constructed at a location listed herein, the wall assemblies making up the *building thermal envelope* or professional analysis of effected walls shall have a composite sound transmission class (STC) rating of 39 or greater in the following locations:

1. Within 500 feet (152 m) of a multi-lane highway designed for high-speed travel by large numbers of vehicles, and having no traffic lights, stop signs, or other regulations requiring vehicles to stop; fire stations; heavy industrial or manufacturing areas or facilities; commercial storage facilities with back-up alarms; outdoor music amphitheaters; or sports arena or stadium;
2. Within 250 feet (76 m) of a roadway containing 4 or more traffic lanes; or
3. Within 1,000 feet (305 m) of an active railway.

3603.2.2 Interior sound transmission. Interior wall and floor-ceiling assemblies, separating interior rooms and spaces shall be designed in accordance with the following requirements:

1. Wall and floor-ceiling assemblies separating adjacent tenant spaces, tenant spaces and public places, hotel rooms, motel rooms, patient rooms in nursing homes and hospitals, and adjoining classrooms shall have a composite STC rating of 50 or greater.
2. Wall and floor-ceiling assemblies separating classrooms from restrooms and showers shall have a composite STC rating of 53 or greater.
3. Wall and floor-ceiling assemblies separating classrooms from music rooms, mechanical rooms, cafeterias, gymnasiums, and indoor swimming pools shall have a composite STC rating of 60 or greater.

Exception: Residential Group R occupancies addressed in Section 1206 of this code.

Section 3604 Electrical vehicle charging.

3604.1 Scope. The provisions of this Section shall control the design and construction for Electric Vehicle Charging.

Exceptions:

1. For every level-3 EV fast charge parking space installed, five type 2 EVPS can be removed.
2. For every EVPS installed in excess of what is required by Table 3604.5, 3 EV-ready or 6 EV-capable spaces can be removed.
3. For every EV-ready space installed in excess of what is required by Table 3604.5, 3 EV-capable spaces can be removed.
4. Parking spaces associated with *structures* and tenant spaces intended for quick transactions, including takeout, pickup, and drop-off shall be exempt.
5. All new and existing developments where the *EV-capacity* requirements would require an upgrade of an existing transformer are exempt.

3604.2 Definitions applicable to this Chapter.

Affordable Housing: Residential occupancies that meet the criteria for affordable housing established in the Land Use Code Section 5.2.1.

Electric Vehicle (EV): A vehicle registered for on-road use, primarily powered by an electric motor that draws current from a rechargeable storage source that is charged by being plugged into an electrical current source.

Electric Vehicle Supply Equipment (EVSE). The electrical conductors and associated equipment external to an *electric vehicle* that provide a connection between the premises wiring and the *electric vehicle* to provide *electric vehicle* charging.

Electric Vehicle Fast Charger. *EVSE* with a minimum power output of 20 kW, also known as level-3 charger.

Electric Vehicle Capable Space. A designated parking space that is provided with a minimum conduit of 1 inch sized for a continuous dedicated branch circuit from a *building* electrical panelboard to the parking space and with sufficient physical space in the same *building* electrical panelboard to accommodate a dual-pole circuit breaker.

Electric Vehicle Ready Space. A parking space that is provided with one continuous 40-amp, 208/240-Volt dedicated branch circuit for *EVSE* that is terminated at a receptacle *EVSE* within the parking space. If an Electric Vehicle Load Management System is specified, then the electrical requirements may be adjusted per the current National Electric Code.

Electric Vehicle Parking Space (EVPS). A parking space or spaces with minimum of level 2 *EVSE* capable of supplying a minimum 40-amp dedicated branch circuit rated at 240-Volt from a *building* electrical panelboard. If an Electric Vehicle Load Management System is specified, then the electrical requirements may be adjusted per the current National Electric Code.

3604.3 Electric Vehicle Supply Equipment. All *EVSE* shall be sized and installed in accordance with article 625 of the currently adopted National Electrical Code.

3604.4 Accessibility. All *Electric Vehicle Ready Spaces* and *EVPS* shall meet all requirements in Chapter 11 of this code. The total amount of required accessible parking spaces shall be removed from the total number of available spaces when calculating the required percentage of spaces for EV.

3604.5 New buildings. All new *buildings* or any *building* undergoing a primary or partial change of occupancy or use in which more than 50% of the total building area is changing must provide *EVPS* as outlined in Table 3604.5, based on either the total number of parking spaces actually provided or the total number of parking spaces required by the Land Use Code, whichever is smaller. A parking schedule or plan shall be shown on the submitted plans that lists the parking spaces and the provided *EVPS* in accordance with Table 3604.5.

3604.6 Existing buildings. Existing *buildings* that provide on-site parking and undergo a renovation or alteration in which the scope of work is more than 50% of the total *building area*, shall provide at least one *EVSE*-installed space.

3604.7 Additions. All additions must provide *EVPS* as outlined in Table 3604.5, based on the total number of parking spaces provided. A parking schedule or plan shall be shown on the submitted plans that list the parking spaces and the provided *EVPS* in accordance with Table 3604.5.

Exception: Additions that do not provide additional parking spaces must provide at least one *EVSE*-Installed space.

TABLE 3604.5—MINIMUM PERCENTAGE OF PARKING SPACES PROVIDED IN NEW BUILDINGS THAT MUST BE ELECTRIC VEHICLE PARKING SPACES, EV READY SPACES, AND EV CAPABLE SPACES.

City of Fort Collins Occupancy Classification for EV Charging Infrastructure	EVSE - installed	EV - Ready	EV – capable
Tier 1			
Residential	10%	20%	40%
Affordable housing	Min of 1 space	15%	20%
Tier 2			
Mercantile	5%	15%	20%
Assembly	5%	15%	20%
Institutional	5%	15%	20%
Business	5%	15%	20%
Educational	5%	15%	20%
Factory	5%	15%	20%
Tier 3			
High hazard	1%	5%	15%
Storage	1%	5%	15%
Utility and misc. group	1%	5%	15%

52. **APPENDIX C GROUP U AGRICULTURAL BUILDINGS** is adopted in its entirety.

53. **APPENDIX E SUPPLEMENTARY ACCESSIBILITY REQUIREMENTS** is adopted in its entirety.

54. **APPENDIX I PATIO COVERS** is adopted in its entirety.

Section 4. Section 5-29 of the Code of the City of Fort Collins is hereby deleted in its entirety.

~~Sec. 5-29. – Violations and penalties.~~

The following section of the ~~International Building Code~~ contains a penalty clause, which is amended in its entirety to read as follows:

~~"113.4 Violations, penalties.~~ Any person who violates a provision of this code or fails to comply with any of the requirements thereof or who erects, installs, within or on, alters or repairs a building or structure in violation of the approved construction documents or directive of the code official, or of a permit or certificate issued under

~~the provisions of this code, shall be guilty of a misdemeanor subject to the penalties and fines pursuant to Section 1-15 of the City Code.~~

~~"113.5 Work commencing before permit issuance.~~ ~~In addition to penalties set forth in Subsection R113.4, any person or firm who, before obtaining the necessary permit(s), commences any construction of, or work on, a building, structure, electrical, gas, mechanical or plumbing system that is not otherwise exempted from obtaining a permit, shall be subject to a processing and penalty fee in addition to the standard, prescribed permit fee. Such additional fee shall be equal to the permit fee, except that such fee shall be not less than fifty dollars (\$50.) nor more than one thousand dollars (\$1,000.) for the first such violation. A person or firm committing the same such violation repeatedly is subject to processing and penalty fees equal to double the amount of the permit fee or double the amount of the preceding violation, whichever is greater, for every same such subsequent violation committed thereafter within any 180-day period. The foregoing fees may be appealed to the City Manager pursuant to Chapter 2, Article VI of the City Code."~~

Section 5. The codifier of the Code of the City of Fort Collins is hereby directed to amend all existing cross references in the City Code and the Land Use Code in accordance with the provisions of this ordinance.

Section 6. The City Attorney and the City Clerk are hereby authorized to modify the formatting and to make such other amendments to this Ordinance as necessary to facilitate publication in the Fort Collins City Code; provided, however, that such modifications and amendments shall not change the substance of the Code provisions.

Introduced, considered favorably on first reading on December 2, 2025, and approved on second reading for final passage on December 16, 2025.

Mayor

ATTEST:

City Clerk

Effective Date: December 26, 2025

Approving Attorney: Madelene Shehan

Exhibit: Exhibit A – Notice of Publication